

HOUSE No. 161

The Commonwealth of Massachusetts

PRESENTED BY:

Steven Owens

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to facilitate labor peace among the cannabis workforce.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/14/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/7/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>6/5/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>6/5/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/5/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>6/6/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>6/16/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>9/3/2025</i>

HOUSE No. 161

By Representative Owens of Watertown, a petition (accompanied by bill, House, No. 161) of Steven Owens for legislation to facilitate labor agreements among the cannabis workforce. Cannabis Policy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4413 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to facilitate labor peace among the cannabis workforce.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 94G of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following 2 definitions:-

3 "Labor peace agreement", an agreement between a marijuana establishment and a bona
4 fide labor organization that protects the parties' interests by, at minimum, allowing union agents
5 to inform and communicate with employees about their labor rights including, but not limited to,
6 the right to form a union without interference from the employer in exchange for prohibiting the
7 labor organization from engaging in picketing, work stoppages or boycotts against the marijuana
8 establishment.

“Bona fide labor organization” means an organization that is included on the list established and periodically updated by the commission pursuant to section 23, as amended by this act.

SECTION 2. Paragraph (3) of subsection (b) of section 5 of said chapter 94G, as so appearing, is hereby amended by striking out the word “and” in line 29.

SECTION 3. Paragraph (4) of said subsection (b) is hereby amended by replacing the period in line 36 with a semi-colon followed by the word “and.”

SECTION 4. Said subsection (b) is further amended by adding the following paragraph: -

(5) the prospective marijuana establishment has submitted an attestation that the applicant shall not interfere with union agents informing and communicating with employees about their labor rights including, but not limited to, the right to form a union without interference from the employer; provided however, that this requirement may be satisfied by the submission of an attestation, signed by both the applicant and a labor organization, stating that the applicant has entered into, and will maintain and abide by the terms of, a labor peace agreement.

SECTION 5. Subsection (b) of section 6 of said chapter 94G is hereby amended by adding the following paragraph:-

As part of a marijuana establishment’s renewal application, a marijuana establishment shall submit an attestation stating that the marijuana establishment has not interfered, and will not interfere, with its employees’ ability to form and maintain a union, including the ability for union agents to inform and communicate with employees about their labor rights including, but not limited to, the right to form a union without interference from the employer; provided

however, that this requirement may be satisfied by the submission of an attestation signed by the license holder and a labor organization stating that the license holder has entered into, maintained, and abided by the terms of a labor peace agreement.

SECTION 6. Chapter 94G is hereby amended by inserting at the end thereof the following new section:-

Section 23. (a) The commission shall establish and periodically update a list of bona fide labor organizations that are actively seeking employees in the commonwealth.

(b) The commission may include on its list labor organizations of any kind, including an employee representation committee, group, or association, in which employees participate and which exists and is constituted for the purpose, in whole or in part, of collective bargaining or otherwise dealing with employers concerning grievances, labor disputes, terms or conditions of employment, including wages and rates of pay, or other mutual aid or protection in connection with employment. Such labor organizations may be characterized by the following:

(1) Being a party to 1 or more executed collective bargaining agreements with medical or adult-use marijuana employers, in the commonwealth or another state.

(2) Having a written constitution or bylaws in the 3 immediately preceding years.

(3) Filing the annual financial report required of labor organizations under subsection (b) of 29 U.S.C. § 431 or having at least 1 audited financial report in the 3 immediately preceding years.

(4) Being affiliated with any regional or national association of unions, including state and federal labor councils.

51 (5) Being a member of a national labor organization that has at least 500 general
52 members in a majority of the 50 states of the United States.

53 (6) Being free from domination, interference, or financial support by any employer.

54 (c) The cannabis control commission shall promulgate regulations to implement this
55 chapter and in doing so shall consult with the executive office of labor and workforce
56 development.

57 (d) This section shall not apply to Small Businesses, as defined in 935 CMR 500.02 and
58 935 CMR 501.02.